

In this context, the Court is unable to conclude that the FAC was “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court” and, therefore, Firquain’s request for an order striking the FAC is DENIED.

Firquain contends that “Code of Civil Procedure § 583.420 [subdivision] (a)(2)(A) . . . gives the Court the discretionary authority to dismiss this action.” (Support memo at 4:24-25.)

Section 583.410 provides that “[t]he court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” Section 583.420 *prohibits* the Court from exercising this discretion except under specifically enumerated conditions. Section 583.420, subdivision (a)(2)(A), provides that one of the conditions under which the Court *may* exercise its discretion (and dismiss an action for delay in prosecution) is where “[t]he action is not brought to trial within . . . [t]hree years after the action is commenced against the defendant . . .”

The Court shares Firquain’s concerns regarding the age of the instant litigation and the significant and unexplained delays in the period between the Court’s October 18, 2023, Order providing for the filing of an amended complaint, and Plaintiff’s filing of the FAC on April 4, 2026. The Court also takes Plaintiff’s failure to file any opposition to the instant motion as a further reflection on Plaintiff’s interest in pursuing its claims.

Nevertheless, the Court recognizes the strong policy in California that parties should be allowed their day in Court. Plaintiff has demonstrated an interest in pursuing its claims as recently as April 4, 2026. The Court further notes that, while Plaintiff has not been diligent in prosecuting the instant action, Firquain has not been diligent in formally defending it. As noted, the Complaint was filed in March, 2023, and the FAC was filed in April, 2026. However, until the instant motion, Firquain had not filed any answer to, demurrer to, or motion to strike either pleading.

Based on the foregoing, the Court is inclined not to exercise its discretion to dismiss the action for failure to prosecute. However, it would like the parties to appear in order to hear from Plaintiff regarding its commitment to pursuing its claims going forward.

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JPMorgan Chase Bank N.A. v. Sophay Seng

25CV000013

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT**

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff JPMorgan Chase Bank, N.A. moves, pursuant to Civil Code Procedure § 664.6, for an order vacating the dismissal and for entry of judgment under terms of the stipulated settlement.

The Court finds good cause for entering judgment based on the Parties' stipulated settlement, filed March 21, 2025, this Court's Order of March 25, 2025, and the Declaration of Alexander Balzer Carr filed in support of the instant motion. (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [entering appealable judgment on trial court order, entered after dismissal, that finally determined the rights of the parties in the action].) No opposition appears in the Court's file.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES TO INTERROGATORIES

TENTATIVE RULING: The motion is GRANTED. Plaintiffs shall serve further, verified responses to the Subject Discovery (defined below) within 30 days of the Notice of Entry of Order. Federal is directed to provide Notice of Entry of Order.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.